

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO H.B. 2875
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Prohibition on unmanned aircraft regulation;
5 exceptions; definitions

6 A. EXCEPT AS OTHERWISE PROVIDED BY LAW, A CITY OR TOWN MAY NOT
7 ENACT OR ADOPT ANY ORDINANCE, POLICY OR RULE THAT RELATES TO THE OWNERSHIP
8 OR OPERATION OF AN UNMANNED AIRCRAFT, UNMANNED AIRCRAFT SYSTEM OR
9 COMMERCIAL DRONE DELIVERY SYSTEM OR OTHERWISE ENGAGE IN REGULATING THE
10 OWNERSHIP OR OPERATION OF AN UNMANNED AIRCRAFT, UNMANNED AIRCRAFT SYSTEM
11 OR COMMERCIAL DRONE DELIVERY SYSTEM. ANY ORDINANCE, POLICY OR RULE THAT
12 VIOLATES THIS SUBSECTION, WHETHER ENACTED OR ADOPTED BY THE CITY OR TOWN
13 BEFORE OR AFTER AUGUST 6, 2016, IS VOID.

14 B. THIS SECTION DOES NOT:

15 1. PROHIBIT A CITY OR TOWN FROM ENACTING OR ADOPTING AN ORDINANCE
16 OR RULE ON ANY OF THE FOLLOWING:

17 (a) OPERATING OR USING A PUBLIC UNMANNED AIRCRAFT THAT IS OWNED BY
18 THE CITY OR TOWN.

19 (b) TAKING OFF OR LANDING A MODEL AIRCRAFT IN A PARK OR PRESERVE
20 THAT IS OWNED BY THE CITY OR TOWN IF EITHER OF THE FOLLOWING APPLIES:

21 (i) THERE ARE OTHER PARKS OR PRESERVES THAT ARE WITHIN THE CITY OR
22 TOWN AND THAT ARE AVAILABLE FOR OPERATING MODEL AIRCRAFT.

23 (ii) THE CITY OR TOWN HAS ONLY ONE PARK OR PRESERVE THAT IS WITHIN
24 THE CITY OR TOWN.

25 (c) LAND USE APPROVALS FOR TAKING OFF, DOCKING AND LANDING A
26 COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA ZONED FOR RESIDENTIAL USE OR
27 WITHIN A ONE HUNDRED FIFTY-FOOT RADIUS OF THE OUTER BOUNDARY OF THE AREA
28 ZONED FOR RESIDENTIAL USE.

1 (d) TAKING OFF, DOCKING OR LANDING A COMMERCIAL DRONE DELIVERY
2 SYSTEM FROM A CITY OR TOWN OWNED FACILITY OR PROPERTY.

3 2. PROHIBIT A CITY OR TOWN FROM REQUIRING OR ENFORCING EXISTING
4 REGULATIONS THAT ARE NOT EXPLICITLY FOR AN UNMANNED AIRCRAFT, UNMANNED
5 AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM.

6 3. ALLOW A CITY OR TOWN TO WITHHOLD ISSUING A PERMIT OR APPROVAL
7 FOR OPERATING, TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT,
8 UNMANNED AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA
9 THAT IS NOT ZONED FOR RESIDENTIAL USE.

10 4. LIMIT A CITY'S OR TOWN'S AUTHORITY TO APPLY AND ENFORCE
11 GENERALLY APPLICABLE ZONING, LAND USE, SITE PLAN, BUILDING, FIRE AND
12 PUBLIC SAFETY REGULATIONS TO THE PHYSICAL LOCATION OF FACILITIES THAT ARE
13 USED FOR TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT OR COMMERCIAL
14 DRONE DELIVERY SYSTEM WITHIN ~~[ONE-MILE]~~ [TWO AND ONE-HALF MILES] OF A
15 [MEDIUM OR] LARGE HUB AIRPORT'S LATITUDE AND LONGITUDE AS RECORDED IN THE
16 FEDERAL AVIATION ADMINISTRATION'S MASTER AIRPORT RECORDS, IF THE
17 REGULATIONS DO NOT GOVERN THE FLIGHT PATH, NAVIGATION OR OPERATION OF THE
18 UNMANNED AIRCRAFT AND DO NOT HAVE THE EFFECT OF PROHIBITING COMMERCIAL
19 DRONE DELIVERY SYSTEMS WITHIN THE JURISDICTION [AND IF THE COMMERCIAL
20 DRONE DELIVERY SYSTEM OPERATOR CONSULTS WITH THE AIRPORT REGARDING THE
21 REGULATIONS].

22 C. FOR THE PURPOSES OF THIS SECTION:

23 1. "COMMERCIAL DRONE DELIVERY SYSTEM" MEANS AN UNMANNED AIRCRAFT
24 SYSTEM ENGAGED IN THE DELIVERING OF GOODS VIA DRONE AND IS APPROVED TO
25 OPERATE FOR THAT PURPOSE BY THE FEDERAL AVIATION ADMINISTRATION.

26 2. "MODEL AIRCRAFT" MEANS AN UNMANNED AIRCRAFT THAT IS:

27 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

28 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
29 THE MODEL AIRCRAFT.

30 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

31 3. "PUBLIC UNMANNED AIRCRAFT" MEANS AN UNMANNED AIRCRAFT OR
32 UNMANNED AIRCRAFT SYSTEM THAT IS OPERATED BY A PUBLIC AGENCY FOR A
33 GOVERNMENT-RELATED PURPOSE.

34 4. "UNMANNED AIRCRAFT" MEANS AN AIRCRAFT, INCLUDING AN AIRCRAFT
35 COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE POSSIBILITY OF
36 DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

37 5. "UNMANNED AIRCRAFT SYSTEM" MEANS AN UNMANNED AIRCRAFT AND
38 ASSOCIATED ELEMENTS, INCLUDING ANY COMMUNICATION LINKS AND COMPONENTS THAT
39 CONTROL THE UNMANNED AIRCRAFT.

40 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
41 is amended by adding section 11-256.31, to read:

42 11-256.31. Prohibition on unmanned aircraft; exceptions;
43 definitions

44 A. EXCEPT AS OTHERWISE PROVIDED BY LAW, A COUNTY MAY NOT ENACT OR
45 ADOPT ANY ORDINANCE, POLICY OR RULE THAT RELATES TO THE OWNERSHIP OR
46 OPERATION OF AN UNMANNED AIRCRAFT, UNMANNED AIRCRAFT SYSTEM OR COMMERCIAL
47 DRONE DELIVERY SYSTEM OR OTHERWISE ENGAGE IN REGULATING THE OWNERSHIP OR

1 OPERATION OF AN UNMANNED AIRCRAFT, AN UNMANNED AIRCRAFT SYSTEM OR
2 COMMERCIAL DRONE DELIVERY SYSTEM. ANY ORDINANCE, POLICY OR RULE THAT
3 VIOLATES THIS SUBSECTION, WHETHER ENACTED OR ADOPTED BY THE COUNTY BEFORE
4 OR AFTER AUGUST 6, 2016, IS VOID.

5 B. THIS SECTION DOES NOT:

6 1. PROHIBIT A COUNTY FROM ENACTING OR ADOPTING AN ORDINANCE OR RULE
7 ON ANY OF THE FOLLOWING:

8 (a) OPERATING OR USING A PUBLIC UNMANNED AIRCRAFT THAT IS OWNED BY
9 THE COUNTY.

10 (b) TAKING OFF OR LANDING A MODEL AIRCRAFT IN A PARK OR PRESERVE
11 THAT IS OWNED BY THE COUNTY IF EITHER OF THE FOLLOWING APPLIES:

12 (i) THERE ARE OTHER PARKS OR PRESERVES THAT ARE WITHIN THE COUNTY
13 AND THAT ARE AVAILABLE FOR OPERATING MODEL AIRCRAFT.

14 (ii) THE COUNTY HAS ONLY ONE PARK OR PRESERVE THAT IS WITHIN THE
15 COUNTY.

16 (c) LAND USE APPROVALS FOR TAKING OFF, DOCKING AND LANDING A
17 COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA ZONED FOR RESIDENTIAL USE OR
18 WITHIN A ONE HUNDRED FIFTY-FOOT RADIUS OF THE OUTER BOUNDARY OF THE AREA
19 ZONED FOR RESIDENTIAL USE.

20 (d) TAKING OFF, DOCKING OR LANDING A COMMERCIAL DRONE DELIVERY
21 SYSTEM FROM A COUNTY OWNED FACILITY OR PROPERTY.

22 2. PROHIBIT A COUNTY FROM REQUIRING OR ENFORCING EXISTING
23 REGULATIONS THAT ARE NOT EXPLICITLY FOR AN UNMANNED AIRCRAFT, UNMANNED
24 AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM.

25 3. ALLOW A COUNTY TO WITHHOLD ISSUING A PERMIT OR APPROVAL FOR
26 OPERATING, TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT, UNMANNED
27 AIRCRAFT SYSTEM OR A COMMERCIAL DRONE DELIVERY SYSTEM IN AN AREA THAT IS
28 NOT ZONED FOR RESIDENTIAL USE.

29 4. LIMIT A COUNTY'S AUTHORITY TO APPLY AND ENFORCE GENERALLY
30 APPLICABLE ZONING, LAND USE, SITE PLAN, BUILDING, FIRE AND PUBLIC SAFETY
31 REGULATIONS TO THE PHYSICAL LOCATION OF FACILITIES THAT ARE USED FOR
32 TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT OR COMMERCIAL DRONE
33 DELIVERY SYSTEM WITHIN ~~[ONE MILE]~~ [TWO AND ONE-HALF MILES] OF A [MEDIUM
34 OR] LARGE HUB AIRPORT'S LATITUDE AND LONGITUDE AS RECORDED IN THE FEDERAL
35 AVIATION ADMINISTRATION'S MASTER AIRPORT RECORDS, IF THE REGULATIONS DO
36 NOT GOVERN THE FLIGHT PATH, NAVIGATION OR OPERATION OF THE UNMANNED
37 AIRCRAFT AND DO NOT HAVE THE EFFECT OF PROHIBITING COMMERCIAL DRONE
38 DELIVERY SYSTEMS WITHIN THE JURISDICTION [AND IF THE COMMERCIAL DRONE
39 DELIVERY SYSTEM OPERATOR CONSULTS WITH THE AIRPORT REGARDING THE
40 REGULATIONS].

41 C. FOR THE PURPOSES OF THIS SECTION:

42 1. "COMMERCIAL DRONE DELIVERY SYSTEM" MEANS AN UNMANNED AIRCRAFT
43 SYSTEM ENGAGED IN THE DELIVERING OF GOODS VIA DRONE AND IS APPROVED TO
44 OPERATE FOR THAT PURPOSE BY THE FEDERAL AVIATION ADMINISTRATION.

45 2. "MODEL AIRCRAFT" MEANS AN UNMANNED AIRCRAFT THAT IS:

46 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

1 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
2 THE MODEL AIRCRAFT.

3 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

4 3. "PUBLIC UNMANNED AIRCRAFT" MEANS AN UNMANNED AIRCRAFT OR
5 UNMANNED AIRCRAFT SYSTEM THAT IS OPERATED BY A PUBLIC AGENCY FOR A
6 GOVERNMENT-RELATED PURPOSE.

7 4. "UNMANNED AIRCRAFT" MEANS AN AIRCRAFT, INCLUDING AN AIRCRAFT
8 COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE POSSIBILITY OF
9 DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

10 5. "UNMANNED AIRCRAFT SYSTEM" MEANS AN UNMANNED AIRCRAFT AND
11 ASSOCIATED ELEMENTS, INCLUDING ANY COMMUNICATION LINKS AND COMPONENTS THAT
12 CONTROL THE UNMANNED AIRCRAFT.

13 Sec. 3. Section 13-3729, Arizona Revised Statutes, is amended to
14 read:

15 13-3729. Unlawful operation of model or unmanned aircraft;
16 state preemption; classification; definitions

17 A. It is unlawful for a person to operate a model aircraft or a
18 civil unmanned aircraft if the operation:

19 1. Is prohibited by a federal law or regulation that governs
20 aeronautics, including federal aviation administration regulations.

21 2. Interferes with a law enforcement, firefighter or emergency
22 services operation.

23 B. It is unlawful for a person to operate or use an unmanned
24 aircraft or unmanned aircraft system to intentionally photograph or loiter
25 over or near a critical facility in the furtherance of any criminal
26 offense.

27 ~~C. Except as authorized by law, a city, town or county may not~~
28 ~~enact or adopt any ordinance, policy or rule that relates to the ownership~~
29 ~~or operation of an unmanned aircraft or unmanned aircraft system or~~
30 ~~otherwise engage in the regulation of the ownership or operation of an~~
31 ~~unmanned aircraft or an unmanned aircraft system. Any ordinance, policy or~~
32 ~~rule that violates this subsection, whether enacted or adopted by the~~
33 ~~city, town or county before or after August 6, 2016, is void.~~

34 ~~D.~~ C. This section does not:

35 1. Apply to a person or entity that is authorized or allowed by the
36 federal aviation administration to operate or use an unmanned aircraft
37 system if the person's or entity's operation or use complies with the
38 authorization granted to the person or entity or with federal aviation
39 administration rules.

40 ~~2. Prohibit a city, town or county from enacting or adopting~~
41 ~~ordinances or rules on the operation or use of a public unmanned aircraft~~
42 ~~that is owned by the city, town or county.~~

43 ~~3. Prohibit a city, town or county from enacting or adopting~~
44 ~~ordinances or rules that regulate the takeoff or landing of a model~~
45 ~~aircraft in a park or preserve owned by the city, town or county if:~~

46 ~~(a) There are other parks or preserves that are within the city,~~
47 ~~town or county and that are available for model aircraft operation.~~

1 ~~(b) The city, town or county only has one park or preserve that is~~
2 ~~within the city, town or county.~~

3 ~~4.~~ 2. Apply to the operation of an unmanned aircraft, including a
4 public unmanned aircraft, by a first responder as defined in section
5 36-661 while acting in the first responder's official capacity or an
6 emergency worker while engaged in or supporting authorized emergency
7 management activities or performing emergency functions pursuant to title
8 26, chapter 2.

9 ~~E.~~ D. A violation of subsection B of this section is a class 6
10 felony, except that a second or subsequent violation is a class 5 felony.
11 A violation of subsection A of this section is a class 1 misdemeanor.

12 ~~F.~~ E. For the purposes of this section:

13 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
14 aircraft system that is operated by a person for any purpose other than
15 strictly for hobby or recreational purposes, including commercial
16 purposes, or in furtherance of or incidental to any business or media
17 service or agency.

18 2. "Commercial purposes" means the use of an unmanned aircraft in
19 return for financial compensation and includes aerial photography, aerial
20 mapping or geospatial imaging.

21 3. "Critical facility" means any of the following:

22 (a) A petroleum or alumina refinery.

23 (b) A petroleum, chemical or rubber production, transportation,
24 storage or processing facility.

25 (c) A chemical manufacturing facility.

26 (d) A water or wastewater treatment facility and water development,
27 distribution or conveyance system, including a dam.

28 (e) An electric generation facility, as defined in section
29 42-14156, and any associated substation or switchyard.

30 (f) An electrical transmission or distribution substation.

31 (g) An electrical transmission line of at least sixty-nine thousand
32 volts.

33 (h) An electronic communication station or tower.

34 (i) An energy control center.

35 (j) A distribution operating center.

36 (k) A facility that transfers or distributes natural gas, including
37 a compressor station, regulator station, city gate station or pressure
38 limiting station or a liquefied natural gas facility or supplier tap
39 facility.

40 (l) Any railroad infrastructure or facility.

41 (m) A federal, state, county or municipal court.

42 (n) A public safety or emergency operation facility.

43 (o) A federal, state, county or municipal jail or prison or other
44 facility in which persons are incarcerated.

45 (p) A federal or state military installation or facility.

46 (q) A hospital that receives air ambulance services.

1 4. "Model aircraft" ~~has the same meaning prescribed in section 336~~
2 ~~of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended~~
3 MEANS AN UNMANNED AIRCRAFT THAT IS:
4 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.
5 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
6 THE MODEL AIRCRAFT.
7 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.
8 5. "Person" means a corporation, firm, partnership, association,
9 individual or organization or any other group acting as a unit.
10 6. "Public unmanned aircraft" means an unmanned aircraft or
11 unmanned aircraft system that is operated by a public agency for a
12 government-related purpose.
13 7. "Unmanned aircraft" means an aircraft, including an aircraft
14 commonly known as a drone, that is operated without the possibility of
15 direct human intervention from within or on the aircraft.
16 8. "Unmanned aircraft system" means an unmanned aircraft and
17 associated elements, including any communication links and components that
18 control the unmanned aircraft.

19 Enroll and engross to conform
20 Amend title to conform

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